

Calendar Line 2

Case Name: *Eastridge Property Holdings, LLC v. Classic Diamond & Jewelry, LLC, et. al*
Case No: 25CV463849

Plaintiff Eastridge Property Holdings, LLC (“Plaintiff”) seeks Right to Attach Orders and a Writ of Attachment in the amount of \$265,594.53. Defendants oppose.

“An attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract . . . where the total amount . . . is a fixed or readily ascertainable amount not less than five hundred dollars (\$500).” (Code Civ. Proc. § 483.010.) The court shall issue a right to attach order if it finds: (1) the attachment is based on a claim which an attachment may be issued; (2) the plaintiff has established probable validity of that claim; (3) the attachment is for the purpose of recovery on that claim; and (4) the amount to be secured is greater than zero. (§ 484.090.) A claim has probably validity if it is more likely than not that the plaintiff will prevail. (§ 481.190.) Defendants have not challenged the probable validity of Plaintiff’s claim in the context of this application.

Defendants do argue that the Application should be denied because the rent liability is secured, and thus exempt, under Code of Civil Procedure section 483.010, subdivision (b). But as Plaintiff notes in its reply, this subdivision states, “[a]n attachment may not be issued on a claim which is secured by an interest in *real property* arising from agreement.” (*Id.* [emphasis added].) The Landlord’s Lien in the lease agreement provides that the rent is secured by “all Tenant’s property now or hereafter situated in the Premises.” This provision does not refer to any real property of Defendants’; thus, the claim is not secured by *real property*.

Defendants’ next argument is that Plaintiff’s claim is not “fixed or readily ascertainable” under section 483.010. “It is well recognized rule of law in this state” that an attachment may be issued “where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite.” (*Lewis v. Steifel* (1950) 98 Cal.App.2d 648, 650 [internal quotations omitted].) An attachment should not be issued “merely because the amount is uncertain consisting of damages to be proven at trial.” (*Id.* [internal quotations omitted].) Here, the damages are readily ascertainable by reference to the contract. The basis of Plaintiff’s computation also appears to be reasonable and definite.

For the foregoing reasons, Plaintiff’s Applications for Right to Attach Orders in the amount of \$265,594.53 are GRANTED, conditioned on Plaintiff filing undertakings of \$10,000 per defendant (\$30,000 total). Plaintiff may attach any corporate property of CLASSIC DIAMOND & JEWELRY, LLC and any real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, general intangibles, property subject to pending action, final money judgments, and personal property in estates of decedents of SAMIR MAHARJAN and SURYA MAHARJAN.

Defendants wish to claim a 2002 Lexus LS430 as exempt from attachment. Defendants’ claim for exemption is DENIED due to a lack of sufficient admissible evidence. Defendant Samir Marhajan’s assertion of the “retail” value of the vehicle and attachment of a hearsay

document apparently printed from an internet site fails to meet the showing contemplated by Code of Civil Procedure § 704.010(c).

As for Defendants' claim that no other attachable assets exist in California, this is not grounds for denial and Plaintiff is entitled to explore the claim in discovery.

The Court will prepare an order after hearing, however, Plaintiff shall prepare and submit the final attachment orders, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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Calendar Line 3

Case Name: *Austin Business Finance, LLC v. J M Supermarkets, INC., et al.*

Case No: 26CV489690

Plaintiff and Judgment Creditor, Austin Business Finance, LLC (“Austin”), submitted an application for an order for sale of the interest in real property. Having received a judgment against J M Supermarkets, Inc. (“J M”) and Maria Ochoa Barajas (“Barajas”), Austin seeks a court order for the sale of Barajas’ undivided one-half interest in 7950 Arroyo Circle, Gilroy, California (“the Property”). Gilroy Ventures, LLC (“Gilroy”) has intervened seeking a judgment quieting title to the Property establishing: (1) that it owns a 100% fee simple interest; (2) that the Property is free and clear of any claim by Austin; and (3) that Austin has no interest, title lien, or right in the Property. (Steinberg Decl. ISO Ex Parte, Ex. 2.)

Gilroy’s and Austin’s briefs have presented a genuine issue as to who owns what interest in the Property. These issues require further litigation. Thus, Gilroy has shown cause as to why the property should not be sold. Accordingly, Austin’s Application for Order to sell Maria Ochoa Barajas’ interest in 8950 Arroyo Circle, Gilroy, California is DENIED.

The matter shall be set for a Case Management Conference on July 29, 2026 at 10:00 a.m. in Department 11.

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